

cause of action) is that a duty to indemnify involves whether there is actual coverage and a duty to defend involves whether there is a potential for coverage. Where there is no potential for coverage, there is necessarily no actual coverage, and therefore it is reasonable that the same facts that support the duty to defend issue also support the duty to indemnify issue.

The Court finds Plaintiff's argument reasonable, and Hall filed nothing by way of a Reply. Thus, the demurrer on the ground that the second cause of action fails to state a cause of action is **OVERRULED**.

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Capital One, N.A. v. Sharon Salomon

26CV000771

MOTION TO QUASH SERVICE

TENTATIVE RULING: The motion is GRANTED.

A. PROCEDURAL MATTERS

Specially-appearing defendant Sharon Salomon ("Defendant") moves, pursuant to Code of Civil Procedure section 418.10, subdivision (a)(1),³ for an order quashing Capital One's ("Plaintiff") purported service of the summons and complaint on Defendant. Defendant so moves on the grounds that the Court lacks jurisdiction over Defendant because the process server left the summons and complaint at Defendant's residence on May 15, 2026 without the knowledge or presence of Defendant, failing to comply with personal service requirements.

B. LEGAL STANDARD

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (§ 418.10, subd. (a)(1).)

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service." (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413. Internal quotes omitted.) A proof of service by a registered process server establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return. (Evid. Code, § 647; see also *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 [filing of proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service].)

C. DISCUSSION

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

The Proof of Service (“POS”) of the summons and complaint, filed June 16, 2026, indicates that the registered process server personally served copies of the documents on “Sharon Salomon” at 740 Chiles Avenue, St. Helena, CA, on May 15, 2026, at 10:18 a.m. The Proof of Service states: “I delivered the documents to Sharon Salomon with identity confirmed by subject saying yes when named. The individual tried to refuse service by refusing to take documents and just said no (documents left, seen by subject). The individual appeared to be a gray-haired white female contact over 65 years of age, 5’6”-5’8” tall and weighing 140-160 lbs. she came out to get the mail.... Pretty much just ignored more. I followed her back to the door and left the documents.” (POS, ¶ 5(a).)

The caption of Defendant’s motion confirms that 740 Chiles Avenue, St. Helena, CA is her address of record. Defendant presents evidence that “a young man saw [her] outside [her] house at [her] mailbox talking to the female mail carrier and called [her] name”; Defendant “did not respond”; He did not identify himself or hand [her] anything and asked whether Defendant moved; “He left nothing, went back to his car.” (Declaration of Sharon Salomon (“Salomon Decl.”) at ¶ 2.) “Some time later on the raised flower bed in my front yard was a copy of the Summons and Complaint.” (*Id.*, ¶ 3.)

“As long as the process server identifies himself or herself and tells the reluctant defendant that he or she is being served with process, and leaves the papers as close as possible to the defendant, service is valid notwithstanding the defendant’s refusal to accept.” (Weil & Brown, *et al.*, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2026), Ch. 4-D, § 4:187, citing *Trujillo v. Trujillo* (1945) 71 Cal.App.2d 257, 260.)

The POS states facts satisfying *Trujillo*. Defendant’s Declaration disputes that the process server identified himself or left the papers in her plain view. The motion, therefore, comes down to a credibility determination. Given that the POS contains contradictory information—*compare* Defendant confirmed her identity by “saying yes when named” *with* “she came out to get the mail [and] Pretty much just ignored me”—the Court resolves the parties’ conflict of evidence in Defendant’s favor. Thus, the Court finds that Defendant has overcome the rebuttable presumption of effective service. Because Defendant shows that copies of the documents were not left in her plain sight, the Court does not find that Defendant was properly served, via personal or substituted service, with the summons and complaint. (Salomon Decl., ¶ 4; §§ 415.10, 415.20; see also *Stafford v. Mach* (1998) 64 Cal.App.4th 1174, 1183 [leaving the papers with someone who does not reveal their identity and thereafter mailing a copy of the papers is sufficient substituted service, where the POS includes an accurate description of defendant].)

Based on the foregoing, the Motion is GRANTED.